

H I S
M A I E S T I E S
D E C L A R A T I O N,

Touching his proceedings in the
late Assemblée and Conuention
of Parliament.



Imprinted at London by BONHAM
NORTON and JOHN BILL,
Printers to the Kings most Excellent
MAJESTIE. 1632.

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IN THE LATE ASSEMBLIE AND CONUENTION OF PARLIAMENT ***

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HIS MAIESTIES

DECLARATION,

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HIS M A I E S T I E S

Declaration, touching his proceedings
in the late Assembly and
Conuention of Parliament.



Hauing of late, vpon mature deliberation, with the aduice and vniforme consent of Our whole Priuie Councell, determined to dissolue the Assembly and Conuention of Parliament, lately called together by Our Regall power and Authoritie, Wee were pleased by Our Proclamation, giuen at Our Palace of *Westminster* the sixt day of this instant *Ianuary*, to declare, not onely Our pleasure and resolution therein, but also to expresse some especiall passages and proceedings, moouing vs to that resolution: Wherein, albeit hauing so many yeeres swayed the swords and scepters of three renowned kingdomes, Wee cannot but discerne (as much as any Prince liuing) what apperteineth to the height of a powerfull Monarch: yet, that all men might discerne, that Wee, like Gods true Viceregent, delight not so much in the greatnesse of Our place, as in the goodnesse & benignitie of our gouernment, We were content in that one Act to descend many degrees beneath Our Selfe: First, by communicating to all Our people the reasons of a

resolution of State, which Princes vse to reserue, *inter arcana Imperij*, to themselves and their Priuie Councell: Secondly, by mollifying and mixing the peremptorie and binding qualitie of a Proclamation, with the indulgence of a milde and fatherly instruction: And lastly, leading them, and opening to them that forbidden Arke of Our absolute and indisputable Prerogatiue, concerning the calling, continuing, and dissoluing of Parliaments: which, though it were more then superabundant to make Our Subiects know the realitie of Our sincere intentions; yet Wee not satisfied therewith, but finding the bounds of a Proclamation too straight to containe and expresse the boundlesse affection that Wee beare to Our good and louing people, are pleased hereby to inlarge Our Selfe, (as Wee promised in Our said Proclamation) by a more full and plaine expression of those Letters and Messages that passed from Vs to the Commons in Parliament, which by reason of the length of them, could not bee related at large, but briefly pointed at in Our said Proclamation. For, as in generall the great actions of Kings are done as vpon a stage, obuious to the publike gazing of euery man; so are Wee most willing, that the trueth of this particular, concerning Our owne honour, and the satisfaction of Our Subiects, should bee represented vnto all men without vaile or couering, being assured that the most plainnesse and freedome will most aduantage Vs, hauing in this, and all Our Actions euer affected such sinceritie and vprightness of heart, as were Wee all transparent, and that men might readily passe to Our inward thoughts, they should there perceiue the selfe-same affections which Wee haue euer professed in Our outward words and Actions.

Hauing anticipated the time of reassembling Our Parliament to the twentieth day of *Nouember* last, (which Wee formerly appointed to haue met vpon the eighth of *February* next,) vpon the confidence that their noble and generous declaration at their parting the fourth of *Iune* put vs in, of their free and liberall assistance to the recouery of Our Childrens ancient inheritance, and hauing declared to them Our resolution of taking vpon Vs the defence of Our childrens patrimonie by way of Armes, the Commons very heartily and

dutifully fell immediatly after their reassembling, to treat of a necessary supplie, and concluded, for the present, to grant a Subsidie to be paid in *February* next, (the last paiment of the latter Subsidie granted by them being not to come in vntill *May* following) whereby Wee were well and cleerly satisfied of the good intenti[=o] of the Commons in generall, by whose vniforme vote & assent that Subsidy was resolved on, not without intimation of a more ample supplie to be yeelded in conuenient time.

But before this their resolution was reduced into a formall Acte or Bill, some discontented persons that were the cause of all that euill which succeeded, endeauouring to clog the good will of the Commons with their owne vnreasonable ends, fell to dispute in the House of Our high Prerogatiues, namely of the match of Our dearest sonne the Prince, of the making warre with forreigne Princes Our Allies, betweene whom and Vs there was a firme peace religiously made and obserued hitherunto: All which they couered with the cloake of Religion, and with the faire pretence of a duetifull Petition to bee preferred to Vs. Wee vnderstanding right well, that those points were not disputable in Parliament, without Our owne Royall direction, being of Our highest Prerogatiues, the very Characters of Souereignty; & thinking, that when euery Subiect by nature, and the Lawes of the Realme, had the power of matching their children according to their owne best liking, none should denie Vs the like; especially Wee hauing at the beginning of the Parliament declared Our purpose concerning the matching of Our Sonne, the Prince, were fully perswaded, that those specious outsides of Religion and humble petitioning, were added onely to gaine passage vnto those things, which being propounded in their true colours, must needs haue appeared vniust and vnreasonable, as matters wherewith neuer any Parliament had presumed to meddle before, except they had bene thereunto required by their King; nay, not befitting Our Priuie Councell to meddle with, without Our speciall command and allowance; since the very consulting vpon such matters (though in neuer so priuate a maner) being discovered abroad, might at some time produce as ill effects, as if they were publikely resolved vpon.

For as concerning the point of Religion, We aswell in the beginning of the Parliament, by a publike and open Declaration made to both Houses in the higher House of Parliament, as also shortly after, by a gracious answere vnto a former Petition of theirs, expressed to the full Our immutable resolution to maintaine true Religion, besides the vntainted practise of Our whole life in that point. And howsoever an humble Petition beare a faire shew of respect; yet if vnder colour of concluding on a Petition, a way should bee opened to treat in Parliament of the mysteries of State, without Our Royall allowance, it were a great and vnusuall breach vpon the Royall power: Besides, who knoweth not that the preferring of a Petition, includes an expectation to haue it graunted? and therefore to nippe this springing euill in the beginning, Wee directed Our Letters to the Speaker of that House, the tenour of which Letters followeth.



MAster Speaker, Wee haue heard by diuers reports to Our great grieffe, That the farre distance of Our Person at this time from Our high Court of Parliament, caused by Our want of health, hath emboldened some fiery and popular spirits in Our House of Commons, to debate and argue publikely, in matters farre beyond their reach or capacitie, and so tending to Our high dishonour, and to the trenching vpon Our Prerogatiue Royall. You shall therefore acquaint that House with Our Pleasure, That none therein shall henceforth presume to meddle with any thing concerning Our gouernment, or mysteries of State; namely, not to speake of Our dearest Sonnes match with the Daughter of Spaine, nor to touch the Honour of that King, or any other Our friends or Confederates: And also not to meddle with any mens particulars, which haue their due motion in Our ordinarie Courts of Justice. And whereas We

heare that they haue sent a message to S^{ir} Edwin Sandys, to know the reasons of his late restraint, you shall in Our name resolute them, That it was not for any misdemeanour of his in Parliament: But to put them out of doubt of any question of that nature that may arise among them hereafter, you shall resolute them in Our name, That We thinke our Selfe very free and able to punish any mans misdemeanours in Parliament, as well during their sitting, as after; which We meane not to spare hereafter, vpon any occasion of any mans insolent behauiour there, that shall be ministred vnto Us. And if they haue already touched any of these points which Wee haue here forbidden, in any Petition of theirs which is to be sent vnto Vs, it is Our pleasure that you shall tell them, That except they reforme it before it come to Our hands, Wee will not deigne the hearing nor answering of it. And whereas Wee heare that they are desirous, that We should make this a Seßion of Parliament before Christmas, You may tell them, It shall be in their default if they want it: For if they will make ready betweene this and that time, some such Lawes as shall be really good for the Common-wealth, Wee will very willingly giue Our Royall assent vnto them: And so it shall thereby appeare, That if good Lawes be not made at this time for the weale of the people, the blame shall onely and most iustly lie vpon such turbulent spirits, as shall preferre their particular ends to the weale of this Kingdome and Common-wealth. And so We bid you farewell. Giuen at Our Court at Newmarket, the third day of December, 1621.

To Our trustie and welbeloued,
The Speaker of Our Commons
House of Parliament.

Hich Letters being publikely read in the House, they were so farre either from reforming their intended Petition, which contained those



points by Vs forbidden, or yet from going on cheerefully in propounding of good Lawes, for which they were called, and to which purpose Wee granted them in the end of Our said Letter to the Speaker, to make it a Session before Christmas, whereof Wee vnderstood them to bee very desirous, that they resolved to send the same vnto vs together with another

Petition iustifying the former, notwithstanding Our forbidding them in Our said Letter to send the former Petition vnto Vs, as also sate euer silent thereafter, till they were dissolved, as shall hereafter more largely be expressed.

Those petitions being sent from the Commons by a select number of that House vnto Vs then being at *Newmarket* for Our health, the House forbare to proceed in any businesse of importance, purposing, as was apparently discerned, and as the euent prooued, so to continue vntill the returne of their Messengers with Our Answer, which wee vnderstanding, and being desirous to haue the time better husbanded, as was fit (the shortnesse thereof, by reason of the approach of Christmas being respected) required Our Secretarie to deliuer a Message vnto them for this purpose, which he did, first by word of mouth, and after by appointment of the House set it downe in writing in these words, viz.

Is Majestie, remembering that this House was desirous to haue a Seßion betweene this and Christmasse, whereupon it pleased Him to signifie vnto vs, that wee should haue contentment therein, and that there should be a Seßion, if wee our selues were not in fault, taking now notice that the House forbeares to proceede with any Billes vntill the returne of the Messengers, lately sent vnto his Majestie,



hath enioyned mee to commaund the House in his Name not to lose time in their proceeding for preparing of good Lawes in the meane while, in consideration of this so neere approach of Christmaße; And that his Majestie hopes they will not take vpon them to make a Recess in effect, though not in shew without his warrant.



*Vt this Message being deliuered, was so farre from working that good effect, which Wee did most iustly expect, that contrariwise some captious and curious heads tooke exception thereat, as tending to the breach of their Priuiledges, by commanding them to proceede with Bills, though We thereby, neither designed any particular Billes for them to proceed with, nor yet forbade any other Parliamentary proceedings; And with those, and such other vndutifull straines of wit, they spunne out the time vntill the returne of their Messengers, who being come to *Newmarket*, presented both the Petitions vnto vs, who well knowing before hand the effect of the former, and then obseruing the contents of the latter, and finding, that from both did reflect vpon Our Person and gouernment sundry causelesse aspersions, and that thereby Our Royall Prerogatiues were inuaded and assailed, after an admonition to beware of meddling therewith, Wee returned vnto them Our Answer in writing, as followeth.*

HIS MAJESTIES ANSWERE

to the Apologetike

Petition of the House of

C O M M O N S ,

Presented to his Majesty by a dozen

of the Members of that House,

by their directions.



WE must heere begin in the same fashion that We would haue done if your first Petition had come to Our hands before We had made stay thereof, which is to repeat the first words of the late Queene of famous memory, vsed by her in Answer to an insolent proposition, made by a Polonian Ambassadour vnto her, That is, Legatum expectabamus, Heraldum accepimus. For We had great reason to expect that the first Message from your House should haue beene a Message of thankesgiuing for Our continued gracious behauior towards Our people since your last Recesse, not onely by Our Proclamation of grace, wherein were contained sixe or seuen and thirty Articles, all of seuerall points of grace to the people; but also by the labour We tooke for the satisfaction of both Houses in those three Articles recommended vnto Vs in both their names by the right Reuerend Father in God, the Archbishop of Canterbury, And likewise for the good gouernement of Ireland We are now in hand with at your request. But not onely haue Wee heard no newes of all this, but contrary great complaints of the danger of Religion within this Kingdome tacitely implying Our ill gouernment in this point. And We leaue to you to iudge, whether it be your duties that are the Representatiue body of Our people, so to distast them with Our gouernment,

whereas by the contrary it is your duty with all your endeauours to kindle more and more a dutifull and thankfull loue in the peoples hearts towards Vs for Our iust and gracious gouernment. Now, whereas in the very beginning of this your Apologie, you taxe Vs in faire termes of trusting vncertaine reports, and partiall informations concerning your proceedings, We wish you to remember, that We are an old and experienced King, needing no such leßons, being in Our conscience freest of any King aliue from hearing or trusting idle reports, which so many of your House as are neerest Vs can beare witnesse vnto you, if you would giue as good eare to them, as you doe to some Tribunitiaall Orators amongst you. And for proofoe in this particular, Wee haue made your owne Meßengers conferre your other Petition, sent by you with the copie thereof, which was sent Vs before, betweene which there is no difference at all, but that since Our receiuing the first Copy you added a conclusion vnto it, which could not come to Our hands till it was done by you, and your Meßengers sent, which was all at one time. And if that We had had no Copie of it before hand, We must haue receiued your first Petition to Our great dishonour, before Wee had knowen what it conteined, which would haue enforced Vs to haue returned you a farre worse answer then now We doe. For then your Meßengers had returned with nothing; but that Wee haue iudged your petition vnlawfull and vnworthy of an Answer. For as to your Conclusion thereof, it is nothing, but Protestatio contraria facto. For in the body of your petition you vsurpe vpon Our Prerogatiue Royall, and meddle with things farre aboue your reach: And then in the conclusion you protest the contrary, as if a Robber would take a mans purse, and then protest he meant not to rob him. For first, you presume to giue Vs your aduice concerning the match of Our dearest Son with some Protestant, We cannot say Princeße (for Wee know none of these fit for him,) and dissuade Vs from his match with Spaine, vrging Vs to a present warre with that King: And yet in the conclusion, forsooth, ye protest ye intend not to preße vpon Our most vndoubted and regall Prerogatiue as if the Petitioning of Vs in matters that your selues confesse yee ought not to meddle with, were not a meddling with them. And whereas yee

pretend, that you were inuited to this course by the speeches of three Honourable Lords; Yet by so much as your selues repeat of their speeches, nothing can bee concluded, but that Wee were resolved by warre to regaine the Palatinate, if otherwise VVe could not attaine vnto it; and you were inuited to aduise forthwith vpon a supplie for keeping the forces in the Palatinate from disbanding, and to foresee the meanes for the raysing and maintaining of the body of an Armie for that warre against the Spring. Now what inference can be made vpon this, That therefore VVe must presently denounce warre against the King of Spaine, breake Our dearest Sonnes match, and match him to one of Our Religion, let the world iudge. The difference is no greater, then as if We would tell a Merchant, that Wee had great neede to borrow money from him for raysing an Armie, that thereupon it should follow, that VVe were bound to follow his aduice in the directions of the warre, and all things depending thereupon. But yet not contenting your selues with this excuse of yours, which indeed cannot hold water, ye come after to a direct contradiction to the conclusion of your former Petition, saying, That the Honour and safety of Vs and Our Posterity, and the Patrimony of Our Children, inuaded and poßessed by their enemies, the welfare of Religion, and State of Our Kingdome are matter at any time not vnfit for your deepest considerations in Parliament. To this generality We answere with the Logicians, That where all things are contained, nothing is omitted. So as this plenipotence of yours inuests you in all power vpon Earth, lacking nothing but the Popes to haue the keyes also both of Heauen and Purgatory. And to this vast generality of yours, VVe can giue no other answer, for it will trouble all the best Lawyers in the House to make a good Commentary vpon it: For so did the Puritan Ministers in Scotland bring all kinde of causes within the compasse of their iurisdiction, saying, That it was the Churches office to iudge of slander, and there could no kinde of crime or fault bee committed, but there was a slander in it, either against God, the King, or their Neighbour. And by this meanes they hooked in to themselues the cognisance of all causes, or like Bellarmines distinction of the Popes power ouer all Kings, in ordine ad Spiritualia, whereby he giues him all

temporall iurisdiction ouer them. But to giue you a direct Answer to the matter of warre, for which you are so earnest, VVe confeße VVe rather expected that you should haue giuen Vs great and hartie thanks for the so long maintaining a settled peace in all Our Dominions, when as all Our Neighbours about are in a miserable combustion of warre; but Dulce bellum inexpertis; and We indeed find by experience, that a number of Our Subiects are so pampered with peace, as they are desirous of change, though they know not what. It is true that We haue euer professed, and in that minde, with Gods grace, Wee meane to liue and die, That We will labour by all meanes possible, either by treaty, or by force to restore Our Children to their ancient Dignities and Inheritances; and whatsoever Christian Princes or Potentates will set themselues against it, Wee will not spare any lawfull meanes to bring Our so iust and Honourable purpose to a good end; neither shall the Match of Our Sonne, or any other worldly respect be preferred to this Our Resolution: For by Our credit, and interuention with the King of Spaine, and the Arch-dutcheße, and her Husband now with God, Wee preserued the lower Palatinat one whole yeere from any further conquering in it, which within any eight dayes space in that time might haue easily been swallowed vp by Spinolaes Armie, without any resistance; and in no better case was it now, at Our Ambassadour, the Lord Digbies comming through Heydleberg, if he had not extraordinarily succoured it. But because Wee perceiue that ye couple this warre of the Palatinate with the cause of Religion, We must a little vnfold your eyes herein. The beginning of this miserable warre, which hath set all Christendome on fire, was not for Religion; but onely caused by Our Sonne in law his hastie and rash Resolution, following euill counsell, to take to himselfe the Crowne of Bohemia: And that this is true, himselfe wrote Letters vnto Vs at that time, desiring Vs to giue aßurance, both to the French King, and State of Venice, that his accepting of the Crowne of Bohemia had no reference to the cause of Religion, but onely by reason of his right by Election (as hee called it:) And we would be sorrie that that aspersion should come vpon Our Religion, as to make it a good pretext for dethroning of Kings, and vsurping their

Crownes. And Wee would bee loath that Our people here should be taught that doctrine: No, let vs not so farre wrong the Iesuits, as to rob them of their sweet Positions and practise in that point. And vpon the other part, We assure Our selfe so farre of your charitable thoughts of Vs, that Wee would neuer haue constantly denied Our Sonne in law, both the title and assistance in that point, if Wee had beene well perswaded of the iustice of his quarrell. But to conclude this point, This vniust vsurpation of the Crownes of Bohemia and Hungaria from the Emperour, hath giuen the Pope, and all that partie, too faire a ground, and opened them too wide a gate for the curbing and oppressing of many thousands of Our Religion, in diuers parts of Christendome. And whereas yee excuse your touching vpon the King of Spaine vpon the occasion of the incidents by you repeated in that place, and yet affirme that it is without any touch to his honor, We cannot wonder ynough, that ye are so forgetfull, both of your words and writs. For in your former Petition ye plainly affirme, that hee affects the Temporall Monarchie of the whole earth, then which there can be no more malice vttered against any great King, to make all other Princes and Potentates, both enuie and hate him. But, if ye list, it may be easily tried, whether that speech touched him in honour or not, if We shall aske him the question, whether hee meanes to assume to himselfe that title or no; For euery King can best iudge of his owne honour. Wee omit the particular eiaculations of some foule mouthed Orators in your House, against the honour of his Crowne and State. And touching your excuse of not determining any thing concerning the Match of Our dearest Sonne, but onely to tell your opinions, and lay it downe at Our feet; First, We desire to know how you could haue presumed to determine in that point, without committing of high Treason. And next, you cannot deny, but your talking of his Match after that manner was a direct breach of Our commandement & Declaration out of Our own mouth, at the first sitting downe of this Parliament; where We plainly professed, that We were in treatie of his Match with Spaine, and wished you to haue that confidence in Our Religion and Wisedome, that We would so manage it, as our Religion should receiue no preiudice by it. And the same We now

repeat vnto you, professing, that We are so farre ingaged in that Match, as We cannot in honour goe backe, except the King of Spaine performe not such things as We expect at his hands. And therefore We are sorrie, that ye should shew to haue so great distrust in Vs, or to conceiue that We should be cold in our Religion: Otherwise We cannot imagine how Our former publike Declaration should not haue stopped your mouthes in this point. And as to your request, that We would now receiue your former Petition, We wonder what could make you presume that Wee would now receiue it; whereas in Our former Letter We plainly declared the contrarie vnto you; and therefore Wee haue iustly reiected that suit of yours: For what haue you left vnattempted in the highest points of Soueraigntie in that Petition of yours, except the striking of Coine; For it containes the violation of Leagues, the particular way how to gouerne a warre, and the Marriage of Our dearest Sonne, both negatiue with Spaine, nay with any other Popish Princesse; and also affirmatiue, as to the matching with one of Our Religion, which Wee confesse is a straine beyond any prouidence or wisdom God hath giuen Vs, as things now stand. These are vnfit things to be handled in Parliament, except your King should require it of you; For who can haue wisdom to iudge of things of that nature, but such as are daily acquainted with the particulars of Treaties, and of the variable or fixed connexion of affaires of State, together with the knowledge of the secret wayes, ends, and intentions of Princes in their seuerall negotiations; otherwise a small mistaking in matters of this nature, may produce more effects then can be imagined: And therefore, Ne sutor vltra crepidam. And besides, the intermedling in Parliament with matters of Peace or Warre, and Marriage of Our dearest Sonne, would be such a diminution to Vs and to Our Crowne in forreine Countreys, as would make any Prince neglect to treat with Vs, either in matters of Peace or Marriage, except they might be assured by the assent of Parliament. And so it prooued long agoe with a King of France, who vpon a trick procuring his States to dissent from some treaty, which before he had made, was after refused treating with by other Princes, to his great reproach, vnlesse hee Would first procure the

assent of the three Estates to their proposition. And will you cast your eyes vpon the late times, you shall finde, that the late Queene of famous memorie was humbly petitioned by a Parliament to be pleased to Marrie; But her answere was, That shee liked their Petition well, because it was simple, not limiting her to place or person, as not befitting her liking to their fancies; and if they had done otherwise, shee would haue thought it a high presumption in them. Iudge then what Wee may doe in such a case, hauing made Our publique Declaration alreadie, as VVee said before, directly contrary to that which you haue now petitioned. Now to those points in your Petition, whereof you desire an answere, as properly belonging to a Parliament; The first and greatest point is that of Religion, concerning which at this time Wee can giue you no other answere then in the generall, which is, That you may rest secure, that Wee will neuer be wearie to doe all Wee can for the propagation of Our Religion, and repreßing of Poperie; but the maner and forme you must remit to Our care and prouidence, who can best consider of times and seasons, not by vndertaking a publique warre of Religion through all the world at once, which how hard and dangerous a taske it would prooue, you may iudge. But this puts vs in mind, how all the world complained the last yeere of plentie of Corne, and God hath sent vs a cooling card this yeere for that heat; And so We pray God, that this desire amongst you of kindling warres, shewing your wearinesse of Peace and Plentie, may not make God permit vs to fall in the miseries of both. But as Wee alreadie said, Our care of Religion must be such, as on the one part We must not by the hote prosecution of Our Recusants at home irritate forreine Princes of contrary Religion, and teach them the way to plague the Protestants in their Dominions, whom with Wee daily intercede, and at this time principally, for ease to them of Our profeßion that liue vnder them; yet vpon the other part, We neuer meane to spare from due and seuer punishment any Papist that will grow insolent for liuing vnder Our so milde Gouernment. And you may also be assured, We will leaue no care vntaken, as well for the good education of the youth at home, especially the children of Papists, as also for preseruing at all times

hereafter the youth that are, or shall be abroad, from being bred in dangerous places, and so poisoned in Popish Seminaries. And as in this point, namely concerning the good education of the Popish youth at home, We haue alreadie giuen some good prooffe, both in this Kingdome and in Ireland: So will We be well pleased to passe any good Lawes that shall be made, either now, or at any time hereafter to this purpose. And as to your request, of making this a Seßion, and granting a generall Pardon, it shall be in your defaults if Wee make not this a Seßion before Christmas, as in Our former Letter We notified vnto you. But for the Pardon, yee craue such particulars in it as Wee must be well aduised vpon, lest otherwise Wee giue you backe the double or triple of that Wee are to receiue by your entire Subsidie without Fifteens. But the ordinarie course Wee hold fittest to bee vsed still in this case, which is, that Wee should of Our free grace send you downe a Pardon from the Higher House, containing such points as We shall thinke fittest, wherein We hope ye shall receiue good satisfaction. But We cannot omit to shew you how strange We thinke it, that ye should make so bad and vniust a Commentarie vpon some words of Our former Letter, as if We meant to restraints you thereby of your ancient priuiledges and liberties in Parliament. Truly a scholler would bee ashamed so to misplace and misiudge any sentences in another mans booke. For whereas in the fore-end of Our former Letter We discharge you to meddle with matters of gouernment, or mysteries of State, namely matters of Warre or Peace, or Our dearest Sonnes Match with Spaine; by which particular denominations We interpret and restraints Our former words; and then towards the end of Our Letter We forbid you to meddle with such things as haue their ordinarie course in Courts of Justice: Yee couple together those two sentences, lying farre asunder, and plainly leaue out these words, of mysteries of State; So as ye erre à bene diuisis ad male coniuncta. For of the former part, concerning mysteries of State, Wee plainelie restrained Our meaning to the particulars that were after mentioned: and in the latter We confesse We meant it by S^{ir} Edward Cokes foolish businesse, because these heades he is accused of were

before your meeting presented vnto Vs, and We had settled a legall course of proceeding therein. And therefore it had well become him, especiallie being Our Seruant, and one of Our Councill, if hee had had any thing against it, to haue complained vnto Vs, which he neuer did, though he was ordinarilie at Our Court, since that time, and neuer had acceße refused vnto him. And although We cannot allow of the stile, calling it your ancient and vndoubted right and inheritance, but could rather haue wished, that ye had said that your priuiledges were deriued from the grace and permission of Our Ancestours and Vs; For most of them grow from precedents, which shewes rather a toleration then inheritance. Yet Wee are pleased to giue you Our Royall assurance, That as long as you shall continue to containe your selues within the limits of your dutie and respect to Vs (as Wee assure Our selfe you will doe) Wee will bee as carefull to maintaine and preserue your lawfull liberties and priuiledges as euer any Our Predecessours were, nay as to preserue Our owne Royall Prerogatiue. So as your House shall onelie haue neede to beware to trench vpon the Prerogatiue of the Crowne, which would enforce Vs, or any iust King to retrench them of their priuiledges, that would pare his Prerogatiue and flowers of the Crowne. But of this We hope there shall neuer be cause giuen. And to conclude, since Wee haue now so largely expressed the sinceritie of Our meaning vnto you, We require you to goe on cheerefullie, and to vse all conuenient diligence for preparing such good Lawes for Vs to passe at this time, as the people may see the care, that both Wee and you haue for the good gouernement of the Kingdome; ending as We did in Our former Letter; If there be not a happie Session made at this time, it shall bee in your default. And aboue all, beware by your waywardnesse at this time, to giue Our Childrens Aduersaries cause to insult vpon them, vpon the rumour that shall be spread abroad of a distraction betweene Vs and Our people, wherof ye are the representatiue bodie. At Our Court at Newmarket the 11. day of December, 1621.



His Answere being giuen at *Newmarket*, on Tuesday, the eighth of *December*, and returned to the house on Friday, the fourteenth of *December*, some carping wits that were more inclinable to peruert and wrest Our words vnto a sence contrary to our meaning, then to doe any good office betweene Vs and Our people, began to take exception at some words concerning their priuiledges toward the end of Our sayd Answere, that thereby their Priuiledges were denied and infringed; And by their example others of more moderate and better temper were drawen into some doubts and ieaiousies, which occasioned much discontentment in the House, which comming to Our eares, and being willing to omit nothing on Our part, that might assure the Commons that Wee meant nothing lesse then to violate their Priuiledges, for explanation of Our true intent in the former, We wrote Our Letters directed to Our Secretary, which followe in these words.



*R*ight trusty and Welbeloued Councillour, Wee greet you well. Wee are sorrie to heare, that, notwithstanding Our reiterated Messages to Our House of Commons, for going on in their businesses in regard of the shortnesse of time, betwixt this and Christmas, and of their owne earnest desire, that Wee should now conclude a Session, by making of good and profitable Lawes, they continue to loose time; And now of late, vpon Our gracious Answer sent vnto them, haue taken occasion to make more delay, in appointing a Committee to morrow, to consider vpon the points of Our Answer; and especially concerning

that point in it which maketh mention of their priuiledges. Our pleasure therefore is, that you shall in Our name tell them, that We are so loath to haue time mis-spent, which is so pretious a thing, in the well vsing whereof Our people may receiue so great a benefit, as We are thus farre contented to discend from Our Royall dignity, by explaining at this time Our meaning in Our sayd Answer, touching that point, That all Our good Subiects in that House, that intend nothing but Our Honour, and the weale of the Common-wealth, may cleerely see Our intention. Whereas in Our sayd Answer We told them, that Wee could not allow of the stile, calling it their ancient and vndoubted right and inheritance; but could rather haue wished, that they had sayd their priuiledges were deriued from the grace and permission of Our Ancestors and Vs: (for most of them grow from presidents, which shewes rather a toleration then inheritance) the plaine truth is, That Wee cannot with patience endure Our Subiects to vse such Antimonarchicall words to Vs concerning their Liberties, except they had subioyned, that they were granted vnto them by the grace and fauour of Our Predecessours. But as for Our intention herein, God knowes Wee neuer meant to deny them any lawfull Priuiledges that euer that House enioyed in Our Predecessours times, as We expected Our said Answer should haue sufficiently cleered them; neither in Justice what euer they haue vndoubted right vnto; nor in Grace what euer Our Predecessours or We haue graciously permitted vnto them: And therefore We made that distinction of the most part; For whatsoever Priuiledges or Liberties they enioy by any Law or Statute, shall be euer inuiolably preserued by Vs; And Wee hope Our Posteritie will imitate Our footsteps therein. And whatsoever Priuiledges they enioy by long Custome, and vncontrolled and lawfull Presidents, Wee will likewise be as carefull to preserue them, and transmit the care thereof to Our Posteritie; neither was it any way in Our minde to thinke of any particular point wherein Wee meant to disallow of their Liberties. So as in Iustice We confesse Our selues to be bound to maintaine them in their rights; and in Grace We are rather minded to encrease, then infringe any of them, if they shall so deserue at Our hands. To end therefore as Wee began, let them goe on cheerefully in their

businesses, reiecting the curious wrangling of Lawyers vpon words and syllables; otherwise (which God forbid) the world shall see how often and how earnestly Wee haue pressed them to goe on, according to their calling, with those things that are fit to be done for the weale of Our Crowne and Kingdome; And how many curious shifts haue beene from time to time maliciously found out, to frustrate Vs of Our good purpose, and hinder them from the performance of that Seruice, which they ought to Vs and to Our whole Kingdome; whereof when the Countrey shall come to be truely enformed, they will giue the Authours thereof little thanks.

Giuen at Our Court at Royston, the sixteenth day of December, 1621.

To Our right trustie and welbeloued Councillor, Sir *George Caluert*, Knight, one of Our principall Secretaries.



AND finding, that notwithstanding all this care taken by Vs for their satisfaction, & that Our thrice reiterated pressing them to husband well the shortnesse of time, in doing good businesse fit for a Parliament, Wee were so farre from preuailing with them, as to all those three admonitions of Ours, which are here related, First, by Our message deliuered by Our Secretary; Next, by Our conclusion of Our Answer to their Petition; And lastly, by the conclusion of Our explanation sent to Our Secretarie, We neither got answer, nor obedience; Yet the continuall care Wee had that this meeting should not dissolue without some fruit for the publike good of Our Subjects, made Vs addresse another Letter to the Speaker in these words.



MAster Speaker, Whereas at the humble suit of Our house of Commons Wee condescended to make this meeting a Seßion before Christmas, to which purpose We gaue them time vntill Saturday next, in case they would seriously applie themselves to that end; & likewise since, out of Our Grace, and to take away al mistakings, by Our Letters directed to Our Secretarie, Wee were pleased so fully and clearely to explane Our selues in the point of maintaining all lawfull Priuiledges to Our said House, which since Wee cannot heare hath had the wished effect, in making them spend this short time in preparing things most necessary for a Seßion, Wee haue thought good once more clearely by this to impart Our minde vnto them; which is, that in respect of the expectation after this so long a meeting in Parliament, as also that the generalitie, for the most part, rather iudge things by the outward effects then enter into the causes of them, Wee haue an earnest desire to make this a Seßion, to the end that our good and louing Subjects may haue some taste, aswell of Our Grace and goodnesse towards them by our free Pardon, and good Lawes to be passed, as they haue had, both by the great, and vnusuall examples of Iustice since this meeting, and the so many eases and comforts giuen vnto them by Proclamatiō: And therfore calling to minde, that the paßing of the Subsidie, an Acte for continuance of Statutes, and the Pardon, are the three most preßing businesses to be effected before the end of the Seßion, Wee wish them, that, as Wee haue giuen order for the Pardon to goe on with all expedition, so they presently goe in hand with the Acte for continuance of Statutes. As for the Subsidie, though time presseth much, yet if they finde it may not now conueniently be done, we will not make that any way an impediment to the good which Wee desire our people should feele by making this a Seßion. Thus much We thought good to giue them to vnderstand, and withall to assure

them, that if they shall not applie themselues instantly to prepare the aforesaid things for Our Royall Assent against Saturday next, Wee will without expecting any further answere from them, construe by their slackenesse, that they desire not a Session; and in such case We must giue a larger time for their returning homeward, to such of both Houses as are to goe into their Countreys to keepe hospitalitie among their neighbours in this time of Recesse.

Giuen at our Court at *Theobalds*, the 17. day of *December*, 1621.

To Our trustie and welbeloued, Sir *Thomas Richardson*, Knight,
Speaker of Our Commons House of Parliament.



And hauing at last (as Wee hoped) by these meanes scattered and dispersed those mists and vapours, which had beene thus raised about their Priuiledges, the House hauing resolved on Tuesday, the eighteenth of *December*, to returne thanks vnto Vs, and therewith an excuse for not making a Sessi[=o], and passing Bills, both contained in a Petition in writing, and dispatched the same vnto Vs, being by that time come to *Theobalds*, the tenour whereof followeth.

May it please your most Excellent
M A I E S T I E,



WE your most loyall and humble Subiects, the Knights, Citizens and Burgeßes of your Commons House of Parliament, hauing this Morning, to our great comfort, heard your Maiesties Letter sent to our Speaker, full of Grace and Goodneße to vs and all your people, haue thought it our duetie foorthwith, to returne our most humble and heartie thanks to your Sacred Maiestie, for so Royall a fauour vouchsafed vnto vs; And we doe humbly beseech your Maiestie to be truely informed from vs, that although we haue beene very desirous in our duetie to your Maiestie, who called vs to this seruice, and to our Countrey for whom we serue, to haue some good Lawes now to haue beene paßed; and that there might haue beene a Seßion before Christmaße, to which your Maiestie vpon our humble Petition, was heretofore Graciously pleased to giue way: yet entring now into a serious consideration of the nature of those things, which must of neceßitie be prepared for the finishing of a Seßion, and the strait of time whereunto we are driuen, by some vnhappy diuersions which haue fallen vpon vs, to our great grieve, wee are enforced once againe to fly to your Maiesties Grace and fauour, humbly submitting our selues to your Royall wisdom, what time will be fittest for our departure, and for our reacceße, to perfect those beginnings which are in preparation with vs; which time by Gods grace we resolute to spend with that diligence and care, as shall giue good satisfaction to your Maiestie, to our Countrey, and to our owne consciences, that we shall make good vse thereof.



His Wee accepted graciously, and returned them an answer by their owne Messengers in these words.



THAT We were sorrie this could not bee made a Seßion, according to their owne desire expressed in their late Petition preferred vnto Vs, to which Wee had most willingly aßented; that they knew there was no fault in Vs, who obseruing the needleße impediments, vpon which they tooke occasion to stay their proceedings, had often admonished them, not to lose time; first, by Secretary Caluert, and afterwards by three Sundry Letters and Answers. But since they conceiued the straitnesse of time (which they had drawne vpon themselues) was such, that it would permit nothing to bee done at this time, Wee had giuen order to adiourne the Parliament till the eighth of February next, which was the first day Wee had formerly appointed for Our meeting together.

Wee were likewise pleased to say, that Wee could not omit to tell them, that we expected other thanks from them, then they had sent Vs at this time, namely for Our gracious promises to maintaine their Priuiledges, as Our owne Soueraigne Prerogatiue: First contained in Our Answer to their Petition, and afterwards as clearely explaned and enlarged by Our next Letter to Secretarie Caluert, as Our wits, for their safetie, satisfaction and aduantage, could possibly deuise; but of this We heard nothing, being slipt by, and wholly omitted by them.



*W*hich message was accordingly deliuered the next morning in the House of Commons. But while We were busied at *Theobalds* in receiuing their Petition, and returning this answer agreeable to Our Grace and good intention towards them, these mutinous and discontented spirits,

neuer giuing ouer their wicked purpose, began anew to stirre the coles of discontentment amongst them; and making them beleue, that their Priuiledges were yet in danger (upon what ground God knowes, Wee cannot imagine nor guesse) procured a Committee to be made for taking their Liberties into consideration; where a Protection was made, to whom Wee know not, concerning their Priuiledges, which they pretended to bee violated by Our Letters and messages, and thereupon in an vnseasonable houre, being sixe of the clocke at night, and a very thinne House, scarcely comming to the third part of the full number, contrary to their owne custome in all matters of weight, they conclude and enter a Protestation for their Liberties, in such ambiguous and generall words, as might serue for future times to inuade most of those Rights and Prerogatiues annexed to Our Imperiall Crowne, as bee the very markes and Characters of Monarchie and Souereigntie, and whereof Wee found Our Crowne vndoubtedly possessed. For founding the claime of their Priuiledges vpon the words of Our Writt for assembling a Parliament, the contriuers of that Protestation craftily mentioned some words, viz. *Super arduis Regni negotijs*, but of purpose left out *quibusdam*, which restraines that generalitie to such particular Cases, as Wee are to consult with them vpon. And the very vncontrolled Custome of all times doeth manifestly prooue, that the King Himselfe, or His Chancellour in his name, doeth at the very beginning of the Parliament declare vnto them what things these *quibusdam* are, wherein hee craueth their aduice and assistance; And vse is euer the best interpreter of words in a case of this nature: Vpon which vnduetifull Protestation Wee were iustly occasioned to publish Our pleasure for dissolution of the Parliament, as appeares by Our Proclamation.



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Excellent Maiestie.
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*** END OF THE PROJECT GUTENBERG EBOOK HIS MAIESTIES DECLARATION, TOUCHING HIS PROCEEDINGS
IN THE LATE ASSEMBLIE AND CONUENTION OF PARLIAMENT ***

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